A school district may levy a qualified special tax upon approval by two-thirds of the votes cast on a measure pursuant to article XIIIA, section 4 of the California Constitution and California Government Code section 50079. In June 2022, Alum Rock Union Elementary School District (District) voters adopted Measure I, authorizing a parcel tax of $214.10 per parcel, adjusted annually, for seven years. Now, the District Board of Trustees (Board) has placed on the ballot a measure to replace that parcel tax with a tax of $310 per parcel. If approved by voters, the Measure I tax would cease and the new annual tax would commence on July 1, 2027, and continue for seven (7) years from that date.

State law requires that such measures state the specific purposes for which tax proceeds will be used and spend the proceeds only for these purposes. The stated purposes of the tax proposed by Measure O are to:

- Enhance academic programs, core instruction, literacy, reading, mathematics, science, and other instructional programs;
- Protect and enhance special education and other programs and services for students with disabilities;
- Support learning resources, academic intervention, programs for English learners, students experiencing housing instability, foster youth, and other student support programs and services;
- Support competitive salaries, wages, and benefits to attract and retain qualified teachers and staff;
- Expand classes and programs for science, technology, engineering, arts, and math instruction;
- Support instructional programs for dual-language immersion, English learner instruction, and multilingual education; and
- Expand and enhance visual and performing arts, music, and other enrichment programs and instruction.

The Measure states that tax proceeds will not fund any program beyond those listed in the Measure nor be used for administrators' salaries, benefits, or pensions. Pursuant to State law, the Measure provides accountability measures for the proceeds, including (1) depositing the proceeds into a fund separate from other District funds, and (2) providing an annual written audit report to the Board detailing the amount of funds collected and expended and the status of any project, programs, and purposes required or authorized to be funded by the tax. The Measure also provides that the Board will establish a citizen oversight committee to advise the Board on tax revenue expenditure.

According to the Measure, the proposed tax does not apply to property that is otherwise exempt from taxation. The Measure states that an exemption will apply to persons occupying the parcel as a principal residence and who are (1) receiving Supplemental Security Income for a disability, regardless of age, or (2) receiving Social Security Disability Insurance benefits, regardless of age, and whose yearly income does not exceed 250 percent of the 2012 federal poverty guidelines issued by the United States Department of Health and Human Services. The Measure also states that an exemption shall also be available, upon application, to persons 65 years or older who own and occupy the parcel as a principal residence.

A "yes" vote is a vote to replace the existing parcel tax with a new parcel tax at a rate of $310 per parcel on parcels within the District for seven years, beginning July 1, 2027.

[redacted]

A "no" vote is a vote to not replace the tax.

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End

Tony LoPresti [M]
County Counsel

By:

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Nick DeFiesta [M]
Deputy County Counsel

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FILED

AUG 18 2026

REGISTRAR OF VOTERS
COUNTY OF SANTA CLARA
By [redacted] Deputy